

Petition for Expungement of Adult Record

Petitioner	
Street Address (including Apt)	
P.O. Box Number	participant/case info review zone
City/State/Zip Code	
Date of Birth	Telephone #
Attorney Name (if any)	
Interpreter needed? ☐ Yes ☐ No	
Language	

ATTORNEY GENERAL
☐ **New Castle County**
 820 N. French Street
 Wilmington, DE 19801

☐ **Kent County**
 102 W. Water Street
 Dover, DE 19904

☐ **Sussex County**
 114 East Market Street
 Georgetown, DE 19947

Crim. Case No.

Civil Petition No.

Pursuant to 11 *Del. C.* § 4374, _____ (Petitioner), hereby petitions Superior Court for expungement of the following case(s), and the charge or set of charges related to that case(s), from his or her criminal record. Each charge is listed separately below; any additional charges are listed on Superior Court Form: [CIV EXP 02 B](#).

Case ID # or Criminal Case #	Charge	Offense Date	Disposition Date	Disposition

The following information **MUST** be completed for the Court to consider the petition

☐ The continued existence and possible dissemination of criminal records relating to Petitioner causes, or may cause, circumstances which constitute a manifest injustice to the Petitioner.

You must explain how the Petitioner is negatively affected by the continued existence and possible dissemination of the criminal records (attach additional pages if necessary):

Petitioner requests that this Court enter an Order directing:

- That all law-enforcement agency records and court records relating to the above referenced case(s), and the charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
- That copies of this Court's Order be delivered to the Petitioner, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
- That the Department of Justice and the Courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to the public inspection or disclosure.
- That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged, or convicted in the above reference case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).

The Petitioner hereby declares that the above information is true and correct to the best of his or her ability.

Petitioner's Signature

Sworn to and subscribed before me this _____ day of _____, _____

Clerk of Court/Notary Public

Date